



CHAPTER cvi.

An Act to confirm a Provisional Order made by the Minister of Transport under the Maidstone Corporation Act 1923 relating to Maidstone Corporation trolley vehicles. [10th July 1930.] A.D. 1930.

WHEREAS under the authority of section seventeen of the Maidstone Corporation Act 1923 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 13 & 14 Geo. 5. c. xxxi.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Maidstone Corporation (Trolley Vehicles) Order Confirmation Act 1930. Short title.

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(*Trolley Vehicles*) Order Confirmation Act, 1930.

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Confirma-
tion of
Order in
schedule.

2. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

SCHEDULE.

A.D. 1930.

**MAIDSTONE CORPORATION
(TROLLEY VEHICLES).**

Order authorising the mayor aldermen and burgesses of Maidstone the borough of Maidstone to provide maintain and use trolley vehicles upon a route in the borough of Maidstone.

1. This Order may be cited as the Maidstone Corporation (Trolley Vehicles) Order 1930 and the Maidstone Corporation (Trolley Vehicles) Order 1927 and this Order may be cited together as the Maidstone Corporation (Trolley Vehicles) Orders 1927 and 1930.

Short and collective titles.

2. The Lands Clauses Acts are (subject to the provisions of and so far as applicable for the purposes of this Order) hereby incorporated with and form part of this Order but with the following exceptions (namely) :—

Incorporation of Acts.

(a) The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement;

(b) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands).

3. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely) :—

Interpretation.

“The Corporation” means the mayor aldermen and burgesses of the borough of Maidstone;

“The borough” means the borough of Maidstone;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;

“Trolley vehicle equipment” means and includes all posts poles standards brackets cables conductors tubes mains

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transformers feeders wires and other apparatus and equipment for the purpose of working and lighting the trolley vehicles;

“Trolley vehicle route” means the route upon which the Corporation are by this Order authorised to work and use trolley vehicles;

“The Act of 1923” and “the Order of 1927” mean respectively the *Maidstone Corporation Act 1923* and the *Maidstone Corporation (Trolley Vehicles) Order 1927*.

Additional
trolley
vehicle
route.

4. The Corporation may use trolley vehicles upon the following trolley vehicle route within the borough (that is to say) :—

Route No. 1 (2 furlongs 0·5 chain or thereabouts in length) commencing at the junction of High Street and Gabriels Hill passing along Gabriels Hill and Lower Stone Street and terminating at the junction of Lower Stone Street and Knightrider Street :

Provided that before equipping the trolley vehicle route to include a turning point or before arranging for a new turning point on the route the Corporation shall submit plans of the turning point to the Minister of Transport for approval.

Power to
borrow.

5. The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenue of the light railway undertaking of the Corporation and the general rate fund and general rate and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) For the provision of trolley vehicle equipment and the construction of other works necessary for working trolley vehicles on the trolley vehicle route.	£ 414	Twenty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Order.	The sum requisite	Five years from the passing of this Order.

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(*Trolley Vehicles*) *Order Confirmation Act, 1930.*

6. The provisions of the Act of 1923 as applied to the Order of 1927 by the following sections of that Order shall so far as applicable and with any necessary modifications extend and apply to the exercise of the powers of this Order as if the same were set out in this Order (that is to say) :—

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Application
of provisions
of Act of
1923.

Section 7 (Application of Part II of Act of 1923);

Section 10 (Application of financial provisions of Act of 1923).

7. Section 8 (As to lands) of the Order of 1927 shall so far as applicable and with any necessary modifications extend and apply to the exercise of the powers of this Order as if the same were set out in this Order.

Application
of provisions
of section 8
of Order of
1927.

8. The undertaking authorised by this Order shall be deemed to form part of the trolley vehicle undertaking authorised by the Act of 1923 and the Order of 1927.

Undertaking to
form part of
trolley vehicle
undertaking.

9. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of money to be borrowed under the powers of this Order for that purpose.

Costs of
Order.

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